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Section 508 Compliance and Accessibility of Information and Communications Technology (ICT) Policy

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Enacted

John McPhail
President & CEO

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1. Objective

The objective of this policy is provide guidance to comply with Section 794d of Title 29, United States Code (USC), also known as [Section 508 and 504 of the Rehabilitation Act of 1973](#), as amended; Part 1193 and 1194 of Title 36, [2 CFR Subpart 39.2](#) of the Federal Acquisition Regulation (FAR); and Section 508 standards set by the United States Access Board.

This policy applies to all acquisitions (federal contracts) with USG funds and applies to assistance awards (federal cooperative agreements and grants) when specifically stated in the award requirements.

Partners of the Americas Inc. (Partners) recognizes the necessity of providing equal access to information and communications technology (ICT) for individuals with disabilities as mandated by Section 508 of the Rehabilitation Act. This policy underscores our commitment to fostering an inclusive environment by ensuring that all ICT utilized or developed by the organization is accessible to individuals with disabilities.

2. Definitions

1. **Information and Communications Technology (ICT)** – means information technology and other equipment, systems, technologies, or processes, for which the principal function is the creation, manipulation, storage, display, receipt, or transmission of electronic data and information, as well as any associated content. Examples of ICT include but are not limited to the following: Computers and peripheral equipment; information kiosks and transaction machines; telecommunications equipment; customer premises equipment; multifunction office machines; software and operating systems; applications; websites; videos; electronic documents; mobile devices, online training, webinars, support control centers, and remote access tools. It does not include any equipment with embedded information technology that does not manage data or information as its principal function, such as HVAC or medical equipment.
2. **Information Technology (IT)** - is defined as any services, equipment, or interconnected system(s) or subsystem(s) of equipment, that are used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the agency.
3. **Telecommunications** - the transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.
4. **Undue burden** - means a significant difficulty or expense.

3. Policy

[Section 508 of the FAR](#) requires that information and communication technology (ICT) products and services are accessible to people with disabilities under federal contracts with a private entity. The goal is to promote equal access to federal programs and information for all individuals, regardless of their disabilities. It applies to all ICT, including software, web sites, web applications, and hardware applications such as computers, peripherals, and other types of electronic office equipment. Unless an exception under [FAR 39.204](#) or an exemption at [FAR 39.205](#) applies, acquisitions of ICT supplies and services must meet the applicable accessibility standards at [36 CFR 1194.1](#).

3.1 Exceptions

The requirements in [FAR 39.203](#) do not apply to ICT that:

- 1) Is for a national security system;
- 2) Is acquired by a contractor incidental to a contract i.e., for in-house use by the contractor to perform the contract; or
- 3) Is located in spaces frequented only by service personnel for maintenance, repair, or occasional monitoring of equipment.

3.2 Exemptions

The USG Donor may grant exemptions to ICT for the following:

- 1) Imposes an undue burden – In determining whether compliance with all or part of the applicable accessibility standards in [36 CFR 1194](#) would be an undue burden, Partners must consider:
 - i) The difficulty or expense of compliance; and
 - ii) Resources available to its program or component for which the supply or service is being acquired.
- 2) Requires fundamental alteration – when determined that acquisition of ICT that conforms with all applicable ICT accessibility standards would result in a fundamental alteration in the nature of the ICT, such acquisition is required to conform only to the extent that conformance will not result in a fundamental alteration in the nature of the ICT.
- 3) Nonavailability of conforming commercial items - When there are no commercial items that fully conform to the ICT accessibility standards, the agency shall procure the supplies or service available in the commercial marketplace that best meets the ICT accessibility standards consistent with the agency's needs.



In a majority of cases, it is not likely one hundred percent (100%) of a system, product, content, or service will be granted an exception. Exceptions are granted in limited instances and must be approved in advance by the USG donor.

3.2.1 Documentation of Exceptions

If requesting USG donor approval on an exemption or exception, documentation of the evaluation must be created to include but not limited to:

- 1) Name of the system, product, content, or service;
- 2) Version Number (where applicable);
- 3) Name of the content or system owner;
- 4) Contact information for the content or system owner;
- 5) Name of the feature(s) or function(s) for which an exception or exemption is being requested;
- 6) Name of the exception or exemption being claimed;
- 7) The criteria deemed to warrant the exception or exemption;
- 8) Justification of the exception or exemption (including where applicable which technical standards cannot be met);
- 9) Screenshots (where applicable);
- 10) List of controls (i.e. the impacted actionable elements, where applicable);
- 11) Identify a plan to meet the needs of people with disabilities through alternative means.

3.3 Section 508 Flow Down Requirements

Section 508 requirements flow down to all contractors and subcontractors under a Federal Contracts.

4. Testing of 508 Compliance

The following are ways that Partners can test for 508 compliance, including:

- **Manual testing-** This requires the staff member to manually check any documents and web pages in a consistent and repeatable manner according to Section 508 requirements.
- **Automated testing** - Using automated 508 tools, staff members can test your website and documents.
- **Hybrid testing** – This option combines both manual and automated testing to comply with Section 508 requirements.



4.1 Section 508 Digital Products/Website Compliance Testing

To meet Section 508 requirements, digital products and websites must conform to standards including those outlined in the [Web Content Accessibility Guidelines \(WCAG\)](#). WCAG states that a website should be perceivable, operable, understandable, and robust for all users. For each of these four categories, WCAG provides testable success criteria, along with practical guidance for fulfilling each criterion.

To meet Section 508 standards, Partners will ensure our digital products and websites conform to WCAG 2.0 Level AA. To test products and confirm their compliance Partners will utilize the following websites:

- 1) [Accessibility Checker](#)
- 2) [WAVE \(Website Accessibility Evaluation Tool\)](#)

Each time digital content is added or updated, Partners will need to monitor, test, and remediate to ensure that it is accessible.

4.2 Section 508 PDF/Word Compliance Testing

To meet Section 508 requirements, all PDF and Word documents for public dissemination must conform to standards for accessibility. To comply with these standards and confirm their compliance Partners will utilize the following tools and website:

- 1) [Adobe Acrobat Pro Accessibility Checker](#)
- 2) [Tingun Checker](#)

5. Reporting Violations

If any violations of this policy is found, the Compliance Team must be contacted at compliance@partners.net. The Compliance Team will work with the Program or Unit Team to analyze the situation and determine the best course of action to resolve the issue of non-compliance.

6. Policy Updates

Regular reviews and updates of the policy will be conducted to align with any changes in Section 508 regulations or the identification of changes in WCAG.